

CV-24-000847 ORTIZ, ALEJANDRO vs CITY OF MODESTO – a) Plaintiff's Motion to Compel Further Responses to Requests for Production from the City of Modesto – GRANTED. b) Plaintiff's Motion to Compel Further Responses to Special Interrogatories from the City of Modesto – GRANTED.

County: stanislaus

Division: Civil Law and Motion

Department: 24

Hearing date: 2026-08-03

Motion: a) Any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Civ. Proc. Code § 2017.010. In the absence of contrary court order, a civil litigant's right to discovery is broad. *Williams v. Superior Ct.* (2017) 3 Cal. 531. Civ. Proc. Code § 2031.210 provides that a party responding to discovery shall respond by any of the following: (1) A statement that the party will comply with the particular demand for inspection, copying, testing, or sampling by the date set for the inspection, copying, testing, or sampling pursuant to paragraph (2) of subdivision (c) of Section 2031.030 and any related activities. (2) A representation that the party lacks the ability to comply with the demand for inspection, copying, testing, or sampling of a particular item or category of item. (3) An objection to the particular demand for inspection, copying, testing, or sampling. Civ. Proc. Code § 2031.220 provides that a statement of compliance with the discovery request shall also state: "...that the production, inspection, copying, testing, or sampling, and related activity demanded, will be allowed either in whole or in part, and that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production." Civ. Proc. Code § 2031.230 provides in relevant part that where a responding party lacks the ability to comply with the demand, any such representation "...shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. The statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item." The court finds that Defendant's discovery responses are deficient in failing to include the statements required in Civ. Proc. Code §§ 2031.210 and 2031.220. Furthermore, Defendant's responses that responsive documents have either never existed or been misplaced or lost are equivocal and violate Civ. Proc. Code § 2031.230. A party is permitted to respond to discover requests with objections and substantive responses. Civ. Proc. Code § 2031.210. However, where the objections are without merit or too general the propounding party may move to compel further responses. Civ. Proc. Code § 2031.210 (a)(3). The court finds Defendant's boilerplate objections are without merit and support a motion to compel further responses. Objections asserting burden must provide a factual basis for the claimed burden. *Lopez v. Watchtower Bible & Tract Society of New York, Inc.* (2016) 246 Cal. App. 4th 566, 594-595. Defendant's assertions of burden are unsupported. Substantively, Plaintiff asserts without contradiction that the various exhibits referred to are not responsive to the requests at issue. Accordingly, Defendant shall provide code compliant, objection free, verified responses to Plaintiff's Requests for Production, Set Three, Numbers 93-95, and 97-111 by no later than 4:00 p.m. on Monday, August 3, 2026. Plaintiff shall submit a proposed order that conforms to this ruling no later than July 24, 2026. b) Any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Civ. Proc. Code § 2017.010. In the absence of contrary court order, a civil litigant's right to discovery is broad. *Williams v. Superior Ct.*, (2017) 3 Cal. 531. Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits. Interrogatories shall be answered to the extent possible if they cannot be answered completely, and a lack of personal knowledge sufficient to respond fully shall indicate a reasonable and good faith effort to obtain the information. Civ. Proc. Code § 2030.220 A party responding to interrogatories may assert an objection to all or part of a question. Civ. Proc. Code §§ 2030.240(a). However, boilerplate objections are not acceptable. *Masimo Corp. v. The Vanderpool Law Firm Inc.* (2024) 101 Cal. App. 5th 902, 909. Boilerplate objections in conjunction with a lack of straightforward responses render the responses incomplete and evasive and subject to a motion to compel further responses. Civ. Proc. Code §§ 2030.200 and 2030.220. Additionally, upon a challenge to Defendant's responses and claims based on a lack of a good faith investigation to obtain the requested information; Defendant may be required to disclose its investigative efforts in that regard. *Deyo v. Kilbourne*, (1978) 84 Cal. App. 3d 771, 782-84. A responding party who chooses to respond to an interrogatory by specifying the writings from which the answer

may be derived or ascertained must refer to the relevant code section, must demonstrate that (1) a compilation, abstract, audit, or summary of documents is necessary in order to answer the interrogatory, (2) no such compilation, abstract, audit, or summary presently exists and (3) the burden or expense of preparing or making a compilation, abstract, audit, or summary would be substantially the same for the propounding party as for the responding party. Civ. Proc. Code §2030.230. In addition, the sufficiency-of-detail requirement effectively demands a level of specificity that enables the propounding party to locate the responsive information without undue burden. Thus, a reference to a large volume of documents is inadequate and subject to challenge. *Fuss v. Superior Ct. for Los Angeles Cnty.*(1969) 273 Cal. App. 2d. 807, 816. An objection based upon burden must be sustained by evidence showing the quantum of work required. *Williams v. Superior Court* (2017) 3 Cal. 5th 531, 549; *West Pico Furniture Co. of Los Angeles v. Superior Court In and For Los Angeles County* (1961) 56 Cal. 2d 407, 417. This means the responding party must come forward with specific, factual information demonstrating the actual scope and magnitude of the effort that compliance would entail. A responding party may not unilaterally impose temporal limitations on a propounding party's discovery. That is the preserve of the court. Civ. Proc. Code § 2017.010. Based on the foregoing, the court finds that Defendant's responses to Plaintiff's Special Interrogatories are deficient, inadequate, and not code compliant. Accordingly, Defendant shall provide code compliant, objection free, verified responses to Defendants Special Interrogatories Set Two, Numbers 111,114 -117, 119, 123-128, 130 and 132 by no later than 4:00 p.m. on Monday, August 3, 2026. Given Defendant's complete reversal of its prior discovery responses, any responses that state that Defendant lacks sufficient information to respond shall detail Defendant's diligent good faith efforts in that regard. Civ. Proc. Code §§ 2030.220; 2030.200; *Deyo v Kilbourne*, supra. Plaintiff shall submit a proposed order that conforms to this ruling no later than July 24, 2026.

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(2) A representation that the party lacks the ability to comply with the demand for inspection, copying, testing, or sampling of a particular item or category of item.

(3) An objection to the particular demand for inspection, copying, testing, or sampling.

Civ. Proc. Code § 2031.220 provides that a statement of compliance with the discovery request shall also state:

"...that the production, inspection, copying, testing, or sampling, and related activity demanded, will be allowed either in whole or in part, and that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production."

Civ. Proc. Code § 2031.230 provides in relevant part that where a responding party lacks the ability to comply with the demand, any such representation "...shall affirm that a diligent search and a reasonable inquiry has been made in an effort to

comply with that demand. This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. The statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item."

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A party is permitted to respond to discover requests with objections and substantive responses. Civ. Proc. Code § 2031.210. However, where the objections are without merit or too general the propounding party may move to compel further responses. Civ. Proc. Code § 2031.210 (a)(3). The court finds Defendant's boilerplate objections are without merit and support a motion to compel further responses.

Objections asserting burden must provide a factual basis for the claimed burden. *Lopez v. Watchtower Bible & Tract Society of New York, Inc.* (2016) 246 Cal. App. 4th 566, 594-595. Defendant's assertions of burden are unsupported.

Substantively, Plaintiff asserts without contradiction that the various exhibits referred to are not responsive to the requests at issue.

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